



CHAPTER lxx.

An Act to confer further powers on the corporation of Halifax with respect to their water and electricity undertakings to increase water charges to authorise the acquisition of the Shibden Hall Estate as a public park and for other purposes. A.D. 1924.
[1st August 1924.]

WHEREAS the county borough of Halifax in the west riding of the county of York (hereinafter in this Act referred to as "the borough") is a municipal borough under the government of the mayor aldermen and burgesses thereof (in this Act referred to as "the Corporation") :

And whereas extensive powers with regard to the supply of water and electricity and with regard to the improvement and government of the borough have been conferred upon the Corporation by the Acts and Orders specified in the First Schedule to this Act which Acts and Orders are hereinafter referred to collectively as "the local Acts" and each of them separately as an Act or Order of the year in which the same was passed or made :

And whereas under and in pursuance of the provisions of certain of the local Acts and of the agreements referred to in this Act the Corporation are supplying or may be required to supply water in bulk to the local authorities bodies and persons parties to such agreements or to their successors in title respectively at the respective prices and

A.D. 1924. subject to the terms and conditions in the said provisions
— and agreements mentioned :

And whereas the said prices are by reason of unforeseen circumstances and the rise in the cost of labour and materials and by reason also of the abnormal conditions prevailing owing to the great war wholly unremunerative and below the net prime cost of the water to the Corporation and thereby an unequal burden has been and is being borne by the water consumers within and the ratepayers of the borough the deficiency in the water undertaking being chargeable on the rates of the borough :

And whereas it is expedient that the inequality so existing should be removed and accordingly that the respective prices now charged for water supplied in bulk to local authorities outside the borough should be increased as in this Act provided :

And whereas it is expedient that further powers should be conferred upon the Corporation in connection with their water undertaking :

And whereas a gift has been made to the Corporation of an estate known as the Shibden Hall Estate situate partly in the borough and partly in the urban district of Southowram which adjoins the borough conditionally on such estate being dedicated to the public and maintained by the Corporation as a public park and recreation ground subject to the terms and conditions contained in the deed whereby such gift has been made and it is expedient that the said deed as set out in the Third Schedule to this Act be confirmed :

And whereas it is expedient that the Corporation should be empowered to acquire by agreement further lands for the purpose of extending their electrical generating station :

And whereas it is expedient that special powers be conferred on the Corporation for regulating the traffic in the borough :

And whereas it is expedient that further powers be granted to the Corporation for the improvement and better government of the borough as in this Act provided :

And whereas the objects aforesaid cannot be effected without the authority of Parliament : A.D. 1924.

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Minister of Health has been obtained :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1.—(1) This Act may be cited for all purposes as the Halifax Corporation Act 1924.

Short and
collective
titles.

(2) The local Acts and Orders specified in the First Schedule to this Act and so much of the Confirmation Acts specified in that schedule as relates to those Orders together with this Act may be cited together as the Halifax Corporation Acts 1823 to 1924.

2. The Act is divided into Parts as follows :—

Act divided
into Parts.

Part I.—Preliminary.

Part II.—Water.

Part III.—Shibden Hall Estate.

Part IV.—Electricity.

Part V.—Police.

Part VI.—Finance and miscellaneous.

3. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act namely :—

Provisions
of certain
general
Acts incor-
porated.

The Lands Clauses Acts except the provisions with respect to the taking of lands otherwise than by agreement and except section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands).

A.D. 1924.

Interpreta-
tion.

4. In this Act unless the subject or context otherwise requires :—

“ The borough ” means the borough of Halifax as existing immediately before the passing of this Act ;

“ The Corporation ” means the mayor aldermen and burgesses of the borough ;

“ The council ” means the town council of the borough ;

“ The borough fund ” means the borough fund of the borough as provided by the local Acts ;

“ The water undertaking ” means the water undertaking of the Corporation as from time to time authorised ;

“ The limits of supply ” means the limits within which the Corporation are for the time being authorised to supply water ;

“ The local authorities ” means the local authorities described in subsection (1) of the section of this Act of which the marginal note is “ Prices for water supplied in bulk to local authorities ” who are for the time being taking a supply of water in bulk from the Corporation ;

“ Other supplies ” means every supply of water by the Corporation to consumers or authorities other than the local authorities as in this section defined and other than the mayor aldermen and burgesses of the borough of Dewsbury and the mayor aldermen and burgesses of the borough of Batley in respect of water supplied or to be supplied in fulfilment of obligations and agreements current at the passing of this Act ;

“ The Morley Corporation ” means the mayor aldermen and burgesses of the borough of Morley ;

“ Revenues of the Corporation ” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and rates leviable by or on the precept of the Corporation ;

“ Statutory security ” shall have the same meaning as that assigned to it by the Act of 1900 ;

“ The Public Health Acts ” means the Public Health Act 1875 and any Act amending the same ; A.D. 1924.

“ The local Acts ” means the unrepealed provisions of the local Acts specified in the First Schedule to this Act and of the Provisional Orders relating to the existing borough confirmed by the Acts also specified in the same schedule and so much of the Confirmation Acts specified in that schedule as relates to those Orders (each of which Acts and Orders is separately referred to as the Act or Order of the year in which it was passed or confirmed) and this Act ;

Words and expressions to which meanings are assigned in enactments incorporated with this Act have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction.

PART II.

WATER.

5.—(1) Subject as in this section provided from and after the first day of October one thousand nine hundred and twenty-four notwithstanding anything to the contrary in the local Acts or in any agreement entered into by the Corporation under or in pursuance of which the Corporation supply or may be required to supply water in bulk to any of the local authorities the price to be paid to the Corporation by each of the local authorities for each thousand gallons of water so supplied shall be respectively the prices provided for by or under the local Acts or the existing arrangements or agreements (the dates of which arrangements or agreements are set out hereunder in the second column opposite to the description of each of the local authorities) under or in accordance with which each such supply is now being or may require to be afforded (which prices are hereinafter referred to as “ the existing prices ” and are set out hereunder in the third column opposite to the description of each of the local authorities respectively) with an addition thereto in each such case of the percentage set out hereunder in the fourth column opposite to the description of each of the local authorities respect-

Prices for
water sup-
plied in bulk
to local
authorities.

A.D. 1924. — ively Provided that in no case shall the price to be paid to the Corporation by any of the local authorities by reason of the addition of such percentage exceed the sum of eightpence for each thousand gallons of water so supplied.

1	2	3	4
Description of Local Authority.	Date of arrangement or agreement under which existing supply is now being afforded.	Existing price or prices per thousand gallons.	Percentage increase on existing price or prices.
Hebden Bridge Urban District Council.	May 13th 1868	3½d.	50
Todmorden Rural District Council	October 26th 1868.		
	March 2nd 1898	3½d.	50
Mayor aldermen and burgesses of borough of Brighouse.	February 18th 1895.	5d.	36
Elland Urban District Council	April 5th 1865	5d.	36
Greetland Urban District Council	February 5th 1868.	5d.	36
Sowerby Bridge Urban District Council.	December 6th 1911.	5d.	36
Luddenden Foot Urban District Council.	June 21st 1899	5d.	36
Mayor aldermen and burgesses of borough of Morley.	September 11th 1906.	5d.	45
	November 18th 1913.		
Hipperholme Urban District Council.	September 12th 1888.	6d. up to 3,650,000 gallons per quarter 5d. for the remainder.	36
Mytholmroyd Urban District Council.	June 18th 1914	6¼d.	36
Halifax Rural District Council	December 30th 1876	7d. up to 2,730,000 gallons per quarter 6d. for the remainder.	36
	April 21st 1897.		

(2) If within a period of two months after the expiration of any revision period the Corporation or any of the local authorities by notice in writing addressed in the case of the Corporation to each of the local authorities and in the case of any of the local authorities to the Corporation and to the others of the local authorities

apply for a revision of the prices in force in the revision period last preceding the date of such notice the price to be paid to the Corporation from the end of such last-mentioned revision period by each of the local authorities shall failing agreement between the Corporation and all the local authorities be determined by the Minister of Health or an arbitrator appointed by him for that purpose and the decision of the Minister or such arbitrator shall be final. A.D. 1924.

(3) (A) The Minister of Health or the arbitrator shall fix such prices to be paid by the local authorities as shall be estimated to be collectively sufficient and not more than sufficient to provide during the then current revision period a sum equal to such proportion of the total amount of the various matters and things hereinafter in this subsection set out as the total quantity of water to be taken by the local authorities shall bear to the total quantity of water to be supplied by the Corporation (A) to the local authorities and (B) for other supplies after deducting therefrom or adding thereto (as the case may be) any surplus or deficiency as in this subsection hereinafter defined :

(B) The said various matters and things hereinafter referred to are as follows :—

- (i) A sum equal to the amount of any interest payable and of any requisite appropriations instalments or sinking fund payments to be made by the Corporation during the then current revision period in respect of moneys borrowed to meet expenditure on capital account or of a capital nature upon the works and purposes set out in the Second Schedule to this Act and upon such other works as may be determined in default of agreement between the Corporation and the local authorities by the Minister of Health or the arbitrator to be works properly chargeable to capital account in respect of the supply of water in bulk (all of which are in this Act referred to as "the bulk supply works") including such sum as has been incurred in pursuance of statutory or other authority in respect of interest upon capital during construction;

A.D. 1924.

- (ii) The cost during the then current revision period properly attributable to the providing and affording supplies of water by means of the bulk supply works including the maintenance thereof and establishment charges management expenses and rates and taxes payable in respect thereof after deducting any moneys received by the Corporation (other than in respect of supplies of water by the Corporation to the local authorities and in respect of other supplies as in this Act defined) in connection therewith including the interest on the bulk supply reserve fund when and so long as that fund amounts to the prescribed maximum and interest on unexpended capital moneys raised in respect of the bulk supply works;
- (iii) At any revision occurring after the first day of October one thousand nine hundred and thirty a payment to the bulk supply reserve fund not exceeding in any one year a sum equivalent to one-half of one per centum on the aggregate amount expended on capital account as aforesaid :

(c) In this subsection "surplus" means any excess in the total amount of the payments made by the local authorities in and for the revision period preceding the date of the notice over their proportionate share as aforesaid of the before mentioned various matters and things as actually ascertained for and in such period and "deficiency" means any excess of the said proportionate share over the said total amount of payments in and for the like period.

(4) (A) In the determination of the prices referred to in subsections (2) and (3) of this section and the surplus or deficiency referred to in the said subsection (3) regard shall not be had to any costs charges and expenses of the Corporation preliminary to and of and incidental to preparing obtaining and passing this Act :

(B) In any determination by the Minister of Health or an arbitrator of the said prices the Minister of Health or the arbitrator may direct by whom any costs incurred in connection therewith by the Corporation or any of the local authorities shall be paid and whether any and if so what part of any such costs incurred by the Corpora-

A.D. 1924.

tion shall be taken into account in any future determination of the said prices or of the surplus or deficiency referred to in the said subsection (3).

(5) The price to be paid by each of the local authorities shall be determined in the case of any revision occurring during the second revision period by the addition to or the deduction from the prices fixed by subsection (1) of this section of such equal percentage as shall be calculated to be sufficient for the purpose of providing the sum referred to in subsection (3) of this section and in the case of any revision occurring during the third or any subsequent revision period by fixing an equal price to be paid by each of the local authorities for each thousand gallons of water supplied to them.

(6) The Corporation shall use their best endeavours to secure that for purposes of local rating the bulk supply works shall be assessed separately from other portions of the water undertaking.

(7) "Revision period" in this section means the period of three years from the first day of October one thousand nine hundred and twenty-four and every subsequent period of three years.

(8) The accounts in respect of the water undertaking to be kept as provided by the section of this Act of which the marginal note is "As to accounts" shall be so kept as to show under appropriate headings in respect of each year—

(A) Each and every receipt payment and expense of the Corporation in respect of each of the various matters and things set out in subsection (3) of this section for which purpose the Corporation shall keep proper books accounts vouchers time sheets and records in respect of repairs stores wages of workmen team labour transport services and rates and other items of expenditure and receipt relating to the water undertaking:

(B) The moneys received by the Corporation in respect of each supply of water provided and afforded by them and for this purpose the Corporation shall be deemed to have received in respect of each thousand gallons of water taken by them for other supplies in each year

A.D. 1924.
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during the first and second revision periods an amount equal to the price per thousand gallons of water for the time being payable by the Morley Corporation and thereafter an amount equal to the price for the time being payable by each of the local authorities as fixed by agreement or determined in accordance with the provisions of subsection (5) of this section.

(9) The Corporation shall as soon as possible after the end of each financial year send to each of the local authorities an abstract of the last before mentioned accounts for that year together with a statement of the quantity of water supplied by the Corporation (a) to the local authorities and (b) for other supplies and of the quantity taken by each local authority and the said accounts together with all vouchers applicable thereto shall upon request be open to the inspection of any of the local authorities who shall be entitled to take copies thereof and extracts therefrom.

(10)—(a) For the purpose of determining the quantity of water to be taken by the Corporation for other supplies the Corporation shall not later than the first day of October one thousand nine hundred and twenty-four provide and thereafter maintain a suitable meter or meters on the outlet pipes from the Albert the Victoria and the Ogden reservoirs respectively and such other meters as may at that date be necessary for that purpose and also from time to time provide and maintain such other meters as may be necessary for that purpose and any of the local authorities shall at any time after giving reasonable notice of their intention to the waterworks engineer of the Corporation be at liberty to inspect and test the said meters and to take copies of the records thereof which records the Corporation are hereby required to take and keep.

(b) If at any time any meter provided by the Corporation for the purpose of this subsection shall be found to be measuring inaccurately or to be out of repair the Corporation may and shall on the requisition of any local authority forthwith repair or adjust such meter or remove the same and provide another suitable meter in its place and during the period that any such meter shall be found to have measured inaccurately or shall have been removed and not replaced by another meter

the quantity of water supplied through the pipe in respect of which such meter shall have been provided shall be deemed to be the quantity supplied through that pipe during the corresponding period of the previous year with such addition or deduction in respect of increase or decrease of the quantity of water supplied during such period as may be agreed between the Corporation and the local authorities or as failing agreement shall be determined by the Minister of Health or an arbitrator appointed by him.

A.D. 1924.

6. From and after the first day of October one thousand nine hundred and twenty-four notwithstanding anything contained in the agreements dated respectively the eleventh day of September one thousand nine hundred and six and the eighteenth day of November one thousand nine hundred and thirteen made between the Corporation of the one part and the Morley Corporation of the other part the following provisions shall apply and have effect with respect to the supply of water in bulk by the Corporation to the Morley Corporation (that is to say) :—

Modifica-
tion of
Morley
Corporation
agreements.

- (a) Subject as in this section hereinafter provided the Corporation shall not be under obligation to supply to the Morley Corporation under the provisions of the said agreements any greater quantity of water in any one quarter ending on the thirty-first day of March the thirtieth day of June the thirtieth day of September and the thirty-first day of December in any year than 45,625,000 gallons :
- (b) Not more than one year before commencing the construction of the Upper Gorple Reservoir or the Lower Gorple Reservoir or both of such reservoirs the Corporation shall give notice in writing to the Morley Corporation of their intention to construct the same :
- (c) Within two months after the date of the giving of such notice the Morley Corporation shall be entitled to serve on the Corporation a notice in writing requiring the Corporation to supply to the Morley Corporation under or for the purposes of the said agreements such additional quantity of water as may be specified in the

A.D. 1924.

notice not exceeding a maximum of 45,625,000 gallons in each and every quarter of a year:

- (d) If the Corporation do not give notice under paragraph (b) of this section before the first day of January one thousand nine hundred and thirty-five the Morley Corporation shall be entitled within two months after the last-mentioned date to serve on the Corporation such a notice in writing as is referred to in paragraph (c) of this section:
- (e) If the Morley Corporation shall serve on the Corporation a notice in writing under paragraph (c) or paragraph (d) of this section then as from the date of the completion and bringing into use of the Upper Gorple Reservoir and the Lower Gorple Reservoir or one of such reservoirs (of which completion and bringing into use the Corporation shall give to the Morley Corporation notice in writing) or the first day of April one thousand nine hundred and thirty-five (whichever date shall be the earlier) the maximum of 45,625,000 gallons prescribed under paragraph (a) of this section shall be increased by the additional quantity specified in such notice and thereafter the Corporation shall not be under obligation to supply to the Morley Corporation under the provisions of the said agreements any greater quantity of water in any one quarter of a year ending as mentioned in paragraph (a) hereof than the quantity of water specified in the notice in addition to the quantity mentioned in the said paragraph (a):
- (f) The Morley Corporation shall pay to the Corporation in respect of each quarter of a year at the prescribed price as fixed from time to time under the provisions of this Act for a not less quantity of water than the maximum quantity which the Corporation can under the said agreements as varied by this section be required in that quarter to supply whether that quantity shall or shall not have been actually required or taken by the Morley Corporation Provided that in respect of any

A.D. 1924.

quarter in which the Corporation shall have been required to and through their own default or by reason of frost drought or other unavoidable cause or accident shall not have supplied the said maximum quantity the Morley Corporation shall only be required to pay for the amount of water actually supplied:

- (g) The Morley Corporation shall not during the continuance of the said agreements save with the consent in writing of the Corporation supply any water in excess of 9,125,000 gallons in any quarter of a year to or for use in any place beyond the boundaries as they may from time to time exist of the borough of Morley and the urban district of Ardsley East and West:
- (h) The Morley Corporation shall not be required to pay to the Corporation any royalty in respect of any water sold by the Morley Corporation to the urban district council of Ardsley East and West:
- (i) Clause (3) of the said agreement dated the eighteenth day of November one thousand nine hundred and thirteen which provides for the giving by the Morley Corporation to the Corporation of a notice in January of every year of the maximum amount of water demanded under that agreement for the year ending the thirty-first day of December then following shall cease to have any operation.

The Corporation shall within six months after the passing of this Act produce to the Commissioners of Inland Revenue a King's printer's copy thereof stamped with the ad valorem duty which would be payable upon an instrument (as defined by the Stamp Act 1891) made between and under the respective seals of the Morley Corporation and the Corporation on the date of the passing of this Act and containing the provisions set out in this section and in default of such production the said duty with interest thereon at the rate of five pounds per centum per annum from the time hereinbefore fixed for production until payment shall be a debt due from the Corporation to His Majesty.

A.D. 1924.

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Modifica-
tion of
Brighouse
Corporation
agreement.

7. Notwithstanding anything contained in the Brighouse Corporation Act 1895 or in the agreement dated the eighteenth day of February one thousand eight hundred and ninety-five and made between the Corporation of the one part and the Brighouse Corporation of the other part which agreement is confirmed by the said Act of 1895 the Brighouse Corporation shall not (a) be required to make any payments to the Corporation under paragraphs 5 6 7 8 or 9 of the said agreement in respect of any period subsequent to the thirtieth day of September one thousand nine hundred and twenty-four or (b) be prevented by the Corporation from enlarging by mining or other means the flow of the waters flowing from the fields called "the Tongue" "the Leys" and "the Sour Ing" and situate wholly in the township of Fixby.

As to sup-
plies of
water to
Mytholm-
royd Sower-
by Bridge
Hartshead
and Clifton.

8.—(1) Notwithstanding anything contained in the agreements referred to in subsection (2) of this section the Corporation shall supply in perpetuity to the urban district council of Mytholmroyd the urban district council of Sowerby Bridge and the rural district council of Halifax and the said councils shall take such quantity of water in bulk as the two first-named councils shall from time to time require for supply within their respective districts and such quantity of water as the last-named council shall from time to time require for supply within the townships of Hartshead and Clifton upon the terms and conditions specified in the said agreements as from time to time amended under the provisions of this Act.

(2) The agreements referred to in subsection (1) of this section are (a) as regards the urban district council of Mytholmroyd an agreement made the eighteenth day of June one thousand nine hundred and fourteen between the Corporation and the urban district council of Mytholmroyd (b) as regards the urban district council of Sowerby Bridge an agreement made between the Corporation and the Sowerby Bridge Local Board scheduled to and confirmed by the Sowerby Bridge Local Board Act 1863 and an agreement made the sixth day of December one thousand nine hundred and eleven between the Corporation and the Sowerby Bridge Urban District Council and (c) as regards the rural district council of Halifax agreements made the thirtieth day of December one

thousand eight hundred and seventy-six and the twenty-first day of April one thousand eight hundred and ninety-seven between the Corporation and the Clifton Water Supply Company Limited.

A.D. 1924.

9. The following provisions shall apply and have effect for the protection of the urban district council of Sowerby Bridge (in this section referred to as "the council") unless otherwise agreed in writing between the council and the Corporation (that is to say):—

For protection of Sowerby Bridge Urban District Council.

- (1) From and after the first day of October one thousand nine hundred and twenty-four the obligation imposed upon the council by the third article of the agreement between the predecessors of the council and the Corporation which is scheduled to and confirmed by the Sowerby Bridge Local Board Act 1863 to pay to the Corporation the sums in that article mentioned shall cease and determine:
- (2) Nothing contained in the second article of the said agreement shall preclude the council from distributing water obtained in bulk from the Corporation to consumers within any future enlarged district of the council:
- (3) From and after the first day of October one thousand nine hundred and twenty-four the supply of water by the Corporation to the council shall be given by means of the existing twelve-inch main adjoining that from which the supply has hitherto been given at a point in Bairstow Lane situate thirty yards or thereabouts from the junction of the said lane with Burnley Road.

10. Notwithstanding anything contained in the local Acts or in any Act incorporated therewith or in any agreement thereunder the rates to be charged to consumers of water outside the borough supplied or to be supplied in detail by the Corporation shall not after the thirtieth day of September one thousand nine hundred and twenty-four exceed by more than twenty per centum the rates for the time charged within the borough.

As to rates for water supplied in detail outside borough.

11.—(1) The Corporation may at any time after the first day of October one thousand nine hundred and thirty

Water reserve funds.

A.D. 1924. — form and maintain a reserve fund in respect of the bulk supply works (in this Act referred to as “the bulk supply reserve fund”) and a reserve fund in respect of the remaining portion of the water undertaking by setting aside to each such fund such an amount (not exceeding in any one financial year a sum of money equivalent to one-half of one per centum upon the total capital expenditure by the Corporation upon the portion of the undertaking in respect of which such fund is formed as at the termination of the immediately preceding financial year) as they may from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equivalent to one-tenth of the aggregate capital expenditure for the time being by the Corporation upon the portion of the undertaking in respect of which such fund is formed.

(2) Any reserve fund formed under this section shall be applicable to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the portion of the undertaking in respect of which such fund is formed or for payment of the cost of renewing improving or extending any part of the works comprised in that portion of the undertaking or otherwise for the benefit of that portion of the undertaking and so that if the fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens :

Provided that resort may be had to either reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

Amendment
of section 35
of Water-
works
Clauses Act
1847.

12. The provisions of section 35 of the Waterworks Clauses Act 1847 shall in their application to the Corporation be read and construed as if the one-tenth part of the expense of providing and laying down pipes mentioned in that section were one-sixth part of such expense and as if the period of three years mentioned in that section were five years.

Power to
local autho-
rities to

13. Any requisition which may be made under section 35 of the Waterworks Clauses Act 1847 by owners or

occupiers of houses requiring a supply of water may be made by the local authority of any district within the Corporation's limits for the supply of water on behalf of such owners or occupiers and shall be binding on the Corporation if the local authority execute an agreement binding themselves to pay for three successive years at least for the supply of water to the houses in respect of which the requisition was made the amount which would have been payable under the said section as amended by this Act by such owners or occupiers.

A.D. 1924.

—
guarantee
on behalf of
owners and
occupiers.

14.—(1) The Corporation may subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes construct place fix and maintain in or under any street within the borough tanks or other receptacles for water for use by the users of road locomotives or motor cars with all necessary or convenient apparatus and appliances (including covers or boxes and pillars or stand-pipes projecting above the level of the surface of the street) for taking or using water from such tanks or receptacles.

Power to
provide
water tanks
under
streets.

(2) The Corporation may make and recover such charges as they may think fit for any water so taken or used and make regulations as to the taking or use of such water and the issuing of permits for such taking or use and the mode of payment of the charges of the Corporation therefor.

(3) If any person shall take or use any water from any such tank or receptacle as aforesaid without being duly authorised so to do by the Corporation he shall for every such offence be liable on summary conviction to a penalty not exceeding five pounds.

(4) The Corporation may attach to any lamp-post pole standard or other similar erection erected on or in any street in under or near to which any such tank or other receptacle is constructed or placed signs or directions indicating the position of such tank or other receptacle and the means by which water may be obtained from the same :

Provided that in cases where the Corporation are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall

A.D. 1924. — make compensation to the owner for any damage or injury occasioned to the lamp-post pole standard or similar erection by the attachment and the Corporation shall indemnify the owner against any claim for damage occasioned to any person or property by or by reason of the attachment.

(5) The Corporation may in any such street as aforesaid erect place fix and maintain posts or poles for carrying such signs or directions as aforesaid.

(6) The Corporation shall not under the powers of this section construct or place any such tank or receptacle as aforesaid on any bridge carrying any street or road over the railways of the London Midland and Scottish Railway Company or over the railways which are jointly owned by the London Midland and Scottish and London and North Eastern Railway Companies or under any bridge carrying any such railways over any street or road or within ten feet of any abutment of any such bridge or so as to interfere with or render less convenient the access to or exit from any station or depôt of the London Midland and Scottish Railway Company or any station or depôt which is jointly owned by the London Midland and Scottish and London and North Eastern Railway Companies.

(7) Nothing in this section shall be deemed to require the owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(8) The Corporation shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing and shall not construct place or fix any such tank or other receptacle apparatus or appliances as aforesaid so as to interfere with or render less convenient the access to or exit from any buildings vested in or occupied by the Crown or any department of His Majesty's Government.

As to supply of water for vehicles.

15. Where water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in premises where horses carriages or motor cars are kept for private use the Corporation may if a hose pipe or other similar apparatus is used charge any additional sum not exceeding twenty-five shillings per annum and (where more motor cars than one are ordinarily kept) a further sum not exceeding ten shillings

per annum for each motor car beyond the first and any sum chargeable under the provisions of this section shall be recoverable in all respects with and as the water rate.

A.D. 1924.

16. If it should appear to the Corporation that by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain there is any waste or risk of waste of water or injury or risk of injury to person or property it shall be lawful for the Corporation to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Corporation in executing such repairs if found to be necessary shall be recoverable by the Corporation from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier :

Power to Corporation to repair communication pipes.

Provided that except in case of emergency the Corporation shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner and occupier of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

17. When several houses or parts of houses in the occupation of several persons are supplied by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the water engineer of the Corporation.

Maintenance of common pipe.

18. Every person who shall wilfully (without the consent of the Corporation) or negligently close or shut off any valve cock or other work or apparatus belonging to the Corporation whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Corporation) be liable to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe,

Penalty for closing valves and apparatus.

A.D. 1924:

—
Penalty for
interfering
with sluices
&c.

19. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Corporation who shall without the authority of the Corporation turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Corporation and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly.

Power to
sell meters
&c.

20. The Corporation may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

PART III.

SHIBDEN HALL ESTATE.

Confirma-
tion of con-
veyance of
Shibden
Hall Estate.

21. The indenture of conveyance made the first day of May one thousand nine hundred and twenty-four between Cecil Cooper Milligan of the first part the Yorkshire Penny Bank Limited of the second part John Lister of the third part Arthur Selby McCrae of the fourth part and the Corporation of the fifth part set forth in the Third Schedule to this Act is hereby confirmed and made binding on the parties thereto.

Application
of provi-
sions of
Public
Health Acts
&c. as to
public
walks and
pleasure
grounds.

22.—(1) Subject to the provisions of this Act the Shibden Hall Estate and any other lands which may be acquired and held in connection therewith shall be held and appropriated by the Corporation for the purposes of a public walk pleasure ground public park or recreation ground and the provisions of the Public Health Acts as amended and extended by the local Acts shall apply thereto as if the same had been acquired by the Corporation in pursuance of section 164 of the Public Health Act 1875 but subject to the covenants restrictions and conditions of the said deed of gift or of any other covenant conveyance grant or lease under which such estate or other lands may be held.

(2) Subject as aforesaid the provisions of section 56 (Setting apart of recreation grounds or moorlands for games &c.) and section 57 (Power to provide apparatus

for games) of the Act of 1902 shall apply to the said Shibden Hall Estate and any lands which may be acquired and held in connection therewith. A.D. 1924.
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PART IV.

ELECTRICITY.

23. The Corporation may acquire and when acquired appropriate hold and utilise the land hereinafter in this section described for the purposes of their electricity undertaking and in connection with their existing generating station and may upon such land erect construct maintain alter improve enlarge extend renew work and use all such buildings engines works dynamos accumulators and other plant and machinery matters and things of whatever description as may be necessary or convenient to enable the Corporation to generate and supply electricity but the Corporation shall not create or permit any nuisance on such land. Power to extend generating station.

The land hereinbefore referred to is the following:—

A piece of land situate in the borough containing two thousand one hundred and forty square yards or thereabouts belonging or reputed to belong to Clayton Metcalfe and Company Limited bounded on the north-easterly and south-westerly sides by land belonging to the Corporation on the north-westerly side by Victoria Street and the footpath connecting Victoria Street with Jonas Well Lane and on the south-easterly side by an imaginary line drawn parallel with Wade Street and at a distance of one hundred and nineteen feet three inches in a north-westerly direction therefrom:

Provided that nothing in this section shall relieve the Corporation from the necessity of obtaining the consent of the Electricity Commissioners under section 11 of the Electricity (Supply) Act 1919 to the erection of a new or the extension of their existing generating station.

PART V.

POLICE.

24.—(1) The Corporation may require any taxi-Inspection meter or other similar apparatus used or intended to be and certifi-

A.D. 1924.

—
cation of
taximeters.

used on any hackney carriage plying for hire within the borough to be tested and inspected and they may also require any taximeter or other similar apparatus to be re-tested and re-inspected at such reasonable intervals of time as the Corporation may prescribe and no such taximeter or other similar apparatus shall be used or be continued in use unless the same be certified to register correctly and the expenses of such testing and certificate not exceeding five shillings in any one year shall be borne by the owner of the hackney carriage.

(2) The Corporation shall issue a certificate in respect of any taximeter found by them to register correctly and such certificate shall be dated with the date upon which such taximeter was last tested and inspected.

(3) Any person using a taximeter or other similar apparatus which is not so certified or failing to submit the same for testing and inspection at such reasonable intervals of time as aforesaid shall be liable to a penalty not exceeding forty shillings.

Byelaws as
to hackney
carriages.

25. The power to make byelaws conferred upon the Corporation by section 68 of the Town Police Clauses Act 1847 shall be extended so as to include power to make byelaws for all or any of the following purposes (that is to say):—

(A) For the inspection of every hackney carriage at all reasonable times when required by the inspector of hackney carriages appointed by the Corporation:

(B) For the cessation of user of a hackney carriage which at any time fails in any way to comply with the requirements of the byelaws respecting the fitness of hackney carriages for public hire:

(C) For the fixing of fares to be charged for the use of any motor hackney carriage by time by distance and by time and distance combined.

Power to
impose test
on motor
drivers.

26. No person shall be entitled to drive a motor vehicle licensed by the Corporation as a hackney carriage unless he shall have satisfied the Corporation of his ability to drive and for that purpose the Corporation may impose such reasonable test as they may think fit.

Power to
stop traffic
on occasions

27. It shall be lawful for the Corporation at all times of public processions rejoicings or illuminations or on other emergencies to cause barricades to be erected across

any of the streets of the borough and to continue the same for such time as may be deemed reasonably necessary and any person who wilfully removes any such barricade or any part thereof shall be liable to a penalty not exceeding forty shillings.

A.D. 1924.

—
of emerg-
ency.

28. Where a police constable in uniform in pursuance of any instructions general or special is regulating the traffic at any junction or crossing in any street any person driving or propelling any vehicle who wilfully neglects or refuses to stop the vehicle or to make it proceed or to make it keep to a particular line of traffic when so directed (by word of mouth or sign) by any such police constable in execution of his duty shall on summary conviction be liable in respect of each offence to a fine not exceeding forty shillings or in the case of a second or subsequent conviction to a fine not exceeding five pounds.

As to con-
trol of
traffic by
police.

29.—(1) Any person or persons intending to organise or form in or through the streets of the borough a procession at any point within a radius of one mile from the town hall (other than processions which are regularly held in or through such streets) shall give written notice thereof and of the route proposed to be taken and of the time at which it will take place to the Corporation by leaving such notice at their head police office twenty-four hours at least (exclusive of Sundays) previous to the time fixed for such procession to pass through the streets.

As to pro-
cessions.

(2) If any such procession passes through the streets of the borough without such notice having been previously given or otherwise than in accordance with such notice the person or persons organising or conducting such procession or any or either of them shall be liable to a penalty not exceeding five pounds each.

30. Any person brought before a court of summary jurisdiction charged with having in his possession custody or control any gold silver platinum or other precious metal or brass copper aluminium German silver or other similar base metal in each case either pure or alloyed and whether in the shape of ingots sheets leaf scrap dust lemel sweepings or other unmanufactured state which the court has reasonable ground to believe has been stolen or unlawfully acquired or detained and who does not account to the satisfaction of the court for his possession custody or control of the same shall for every

Penalty on
persons
having pro-
perty sus-
pected to
have been
stolen.

A.D. 1924. — such offence be liable to a penalty not exceeding twenty pounds.

Extension
of section 4
of Vagrancy
Act 1824 to
canals &c.

31.—

- (1) Every person wandering abroad and lodging in any canal boat or in the cabin of any canal boat upon any canal in the borough not having any visible means of subsistence and not giving a good account of himself; and
- (2) Every person wilfully openly lewdly and obscenely exposing his person in or on any canal or on the towing path of any canal or in any unfenced vacant land adjoining any canal or any such towing path or in the bed or on the banks of any river or stream or in any unfenced vacant land adjoining any river or stream in the borough with intent to insult any female; and
- (3) Every person playing or betting by way of wagering or gaming on any such canal towing path or in any such vacant land or in or on any such bed or banks of any river or stream or vacant land adjoining the same as is mentioned in the last preceding paragraph hereof

shall be deemed a rogue and a vagabond within the meaning of the Vagrancy Act 1824 as amended by the Vagrant Act Amendment Act 1873 and on subsequent conviction shall be deemed an incorrigible rogue within the meaning of the said Acts and may be dealt with accordingly.

As to unfenced
grounds and
courts.

32.—(1) Any unfenced ground or any court or passage adjoining or abutting upon any street (including any washhouses or other outhouses situate in such courts and used in common by the occupiers of premises abutting thereon) shall for the purposes of the Vagrancy Act 1824 and of any Act for the time being in force altering or amending the same be deemed to be a public place.

(2) Section 164 (As to unfenced grounds) of the Act of 1900 is hereby repealed.

PART VI.

FINANCE AND MISCELLANEOUS.

Power to
borrow.

33.—(1) The Corporation may from time to time independently of any other borrowing power borrow at

interest on the security of the revenues of the Corporation and for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all money so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the third column of the said table (namely) :—

A.D. 1924.

Purpose.	Amount.	Period for repayment.
(a) For the payment out of capital of interest on money borrowed for and in connection with the purchase of lands and easements for and the construction of the waterworks authorised by the Act of 1922 until the completion of such works or the expiration of 10 years from the date or dates of borrowing whichever be the earlier.	The sum requisite.	Sixty years from the date or dates of borrowing.
(b) For paying the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act other than electricity purposes.

Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the said Minister.

34. From and after the first day of October one thousand nine hundred and twenty-four—

Water receipts and expenses.

- (1) All moneys from time to time received by the Corporation in respect of their water undertaking (including the interest on any reserve fund other than the bulk supply reserve fund in connection with that undertaking when the fund amounts to the prescribed maximum) shall be carried to and shall form part of the borough fund and all payments and expenses

A.D. 1924.

made and incurred in respect of that undertaking shall be paid out of that fund.

(2) Section 88 of the Act of 1865 and section 123 of the Act of 1868 are hereby repealed.

As to
accounts.

35. The Corporation shall keep their accounts so as to distinguish capital from revenue and as regards revenue accounts to show under a separate heading or division in respect of each undertaking or purpose on the one side all receipts and on the other side all payments and expenses in respect thereof (distinguishing in the case of the water undertaking in such receipts payments and expenses between the various matters and things set out in subsection (3) of the section of this Act of which the marginal note is "Prices for water supplied in bulk to local authorities" and other payments and expenses) and for the purposes of this provision shall so far as reasonably practicable apportion to such undertaking or purpose any receipts credits payments and liabilities which from time to time ought properly to be so apportioned.

Application
of sections
of local Acts
as to bor-
rowing.

36. The following sections of the following local Acts shall (subject to the provisions of this Act) extend and apply to and in relation to the moneys borrowed under this Act as if those sections with the necessary modifications were set forth in this Act namely:—

OF THE ACT OF 1888.

Section 34 (Mode of raising moneys);

Section 39 (Protection of lender from inquiry):

OF THE ACT OF 1898.

Section 42 (Application of money borrowed);

Section 44 (Sinking fund):

OF THE ACT OF 1902.

Section 94 (Provisions as to mortgages);

Section 95 (Mode of payment off of money borrowed);

Section 102 (Expenses of execution of Act):

OF THE ACT OF 1911.

A.D. 1924.

Section 104 (Corporation not to regard trusts):

Provided that in the application of the said section 44 to the purposes of this Act that section shall have effect as though three and a half per centum or such other rate as the Minister of Health may from time to time approve were therein mentioned instead of three per centum per annum.

37. The following sections of the following local Acts are incorporated with this Act and shall subject to the provisions of this Act apply as if the same with the necessary modifications were set forth in this Act namely :—

Incorporation of certain sections of local Acts.

OF THE ACT OF 1902.

Section 117 (Persons acting in execution of Act not to be personally liable);

Section 119 (Inquiries by Local Government Board);

Section 121 (Authentication and service of notices &c.);

Section 122 (Powers of Act cumulative);

Section 123 (Informations by whom to be laid);

Section 124 (As to committees);

Section 125 (Compensation how to be determined);

Section 126 (As to appeal);

Section 127 (Recovery of penalties &c.);

Section 129 (Damages and charges to be settled by justices);

Section 131 (Audit of accounts):

OF THE ACT OF 1905.

Section 65 (As to breach of conditions of consent of Corporation);

Section 67 (Crown rights):

A.D. 1924.

OF THE ACT OF 1911.

Section 116 (Evidence of appointments authority
&c.);

Section 118 (Consent of Corporation to be in
writing);

Section 120 (Recovery of demands);

Section 121 (Saving for indictments &c.); and

Section 124 (Judges not disqualified):

Provided that for the purposes of this Act subsection
(2) of section 119 of the Act of 1902 shall have effect as if
the words "not exceeding three guineas a day" were
omitted therefrom.

Costs of Act.

38. The costs charges and expenses preliminary
and of and incidental to preparing obtaining and passing
this Act as taxed by the taxing officer of the House of
Lords or House of Commons shall be paid by the
Corporation.

The SCHEDULES referred to in the foregoing
 Act.

A.D. 1924.

THE FIRST SCHEDULE.

THE LOCAL ACTS.

Sessions and Chapters.	Title or Short Title.
Acts—	
3 Geo. IV. c. xxx.	- An Act for lighting with gas the town and township of Halifax and the neighbourhood thereof within the parish of Halifax in the West Riding of the county of York.
4 Geo. IV. c. xc. -	- An Act for paving lighting cleansing watching and improving the township of Halifax and for supplying the same with water.
3 & 14 Vict. c. xlii.	- An Act to confirm the incorporation of certain boroughs and to provide for the payment of the expenses of the incorporation of new boroughs.
16 & 17 Vict. c. clxvii. -	The Halifax Improvement Act 1853.
18 & 19 Vict. c. cxliv. -	The Halifax Gas Act 1855.
19 & 20 Vict. c. xxvi. (section 2).	The Public Health Supplemental Act 1856 (section 2).
21 & 22 Vict. c. xci. -	The Halifax Park and Improvement Act 1858.
25 Vict. c. xli. -	The Halifax Improvement Act 1862.
28 & 29 Vict. c. cxl. -	The Halifax Extension and Improvement Act 1865.
31 & 32 Vict. c. cxxvii.	The Halifax Corporation Waterworks and Improvements Act 1868.
33 & 34 Vict. c. xcv. -	The Halifax Water and Gas Extension Act 1870.
39 & 40 Vict. c. ccxxxiv.	The Halifax Water and Gas Extension Act 1876.
45 & 46 Vict. c. ccxxxiv.	The Halifax Corporation Act 1882.
51 & 52 Vict. c. xliv. -	The Halifax Corporation Waterworks Act 1888.
60 & 61 Vict. c. xciv. -	The Halifax Corporation Tramways Act 1897.
61 & 62 Vict. c. cxlvi. -	The Halifax Corporation Act 1898.

A.D. 1924.	Sessions and Chapters.	Title or Short Title.
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Acts—continued.

63 & 64 Vict. c. ccxxxiv.	The Halifax Corporation Act 1900.
2 Ed. VII. c. cxxiv. -	The Halifax Corporation Act 1902.
5 Ed. VII. c. ccv. -	The Halifax Corporation Act 1905.
1 & 2 Geo. V. c. cxiii. -	The Halifax Corporation Act 1911.
5 & 6 Geo. V. c. xxvi. -	The Halifax Corporation Act 1915.
10 & 11 Geo. V. c. lxxvi.	The Halifax Corporation Act 1920.
12 & 13 Geo. V. c. lxvi.	The Halifax Corporation Act 1922.

Provisional Orders—

14 & 15 Vict. c. ciii. -	The Halifax Order 1851 confirmed by the Public Health Supplemental Act 1851 (No. 3).
44 & 45 Vict. c. lxvi. -	The Halifax Order 1881 confirmed by the Local Government Board's Provisional Orders Confirmation (Halifax &c.) Act 1881.
49 & 50 Vict. c. lxi. -	The Halifax Order 1886 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1886.
50 & 51 Vict. c. cxxii. -	The Halifax Order 1887 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1887.
52 & 53 Vict. c. cxiii. -	The Halifax Order 1889 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 11) Act 1889.
53 & 54 Vict. c. lxxxii. -	The Halifax Order 1890 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 3) Act 1890.
55 & 56 Vict. c. lxxi. -	The Halifax (No. 2) Order 1892 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1892.
55 & 56 Vict. c. cc. -	The Halifax (No. 3) Order 1892 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 9) Act 1892.
55 & 56 Vict. c. ccxxii.	The Borough of Halifax Order 1892 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 10) Act 1892.

Sessions and Chapters.	Title or Short Title.	A.D. 1924.
<i>Provisional Orders—continued.</i>		
55 & 56 Vict. c. xxxvii.	The Halifax Corporation Electric Lighting Order 1892 confirmed by the Electric Lighting Orders Confirmation (No. 2) Act 1892.	
58 & 59 Vict. c. lxxvi. -	Commons Regulation (Halifax) Provisional Order Confirmation Act 1895.	
59 Vict. c. xxix. -	The Halifax Order 1896 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1896.	
62 & 63 Vict. c. cxi. -	The Borough of Halifax Order 1899 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1899.	
62 & 63 Vict. c. cli. -	The Halifax Corporation Tramways Order 1899 confirmed by the Tramways Orders Confirmation (No. 1) Act 1899.	
1 Ed. VII. c. cxlvii. -	The Halifax and Sowerby Bridge Order 1901 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1901.	
2 & 3 Geo. V. c. cxxxiii.	The Halifax (Extension) Order 1912 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1912.	
6 & 7 Geo. V. c. xxxii.	The Halifax Corporation Act Provisional Order Confirmation Act 1916.	
8 & 9 Geo. V. c. i. -	The Halifax Order 1918 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1918.	
	Order made by Minister of Health dated 11th November 1919.	
13 & 14 Geo.V.c.xxxix.	The Halifax Order 1923 confirmed by the Ministry of Health Provisional Orders Confirmation (No. 6) Act 1923.	

A.D. 1924.

THE SECOND SCHEDULE.

WORKS AND PURPOSES REFERRED TO IN SUBSECTION (3)
OF THE SECTION OF THIS ACT OF WHICH THE MARGINAL
NOTE IS "PRICES FOR WATER SUPPLIED IN BULK TO
LOCAL AUTHORITIES."

1. Lands rents easements reservoirs aqueducts roads drains
tunnels conduits basins pipes and all other works costs and
expenses legal or otherwise in connection with the Widdop Warley
Moor Deanhead Castle Carr Ogden Mixenden Walshaw Dean and
Gorple Reservoirs respectively.

2. Lands rents easements reservoirs aqueducts roads drains
tunnels conduits basins filters pipes and all other works costs and
expenses legal or otherwise in connection with the Ramsden Wood
Albert and Victoria Reservoirs respectively and the Waterworks
Offices in Gibbet Street.

3. The following mains :—

Main from Albert Reservoir to North Bridge and forward
to Pocket Stile meter house.

Main from Albert Reservoir to Savile Estates Meter at
Wakefield Road Brighthouse.

Main from Albert Reservoir to Wakefield Road Brighthouse.

Main from Victoria Reservoir to Burnley Road and thence
to meter house at Cote Hill.

Main from Victoria Reservoir to Calder and Hebble and
thence to Elland meter house and branch to Greetland
meter house from the said main.

Main from Victoria Reservoir to Cote Hill thence to
Luddenden Foot and forward to Upper Foot to
Mytholmroyd meter.

Main from Ogden Reservoir to Boothtown.

Main from Pellon Lane to King Cross via Queen's Road.

THE THIRD SCHEDULE.

A.D. 1924.

CONVEYANCE OF SHIBDEN HALL ESTATE.

THIS INDENTURE made the first day of May one thousand nine hundred and twenty-four between the YORKSHIRE PENNY BANK LIMITED having its registered office situate at Infirmary Street in the city of Leeds (hereinafter referred to as "the Bank") of the first part CECIL COOPER MILLIGAN of Batley in the county of York gentleman (hereinafter referred to as "the Owner") of the second part JOHN LISTER of Shibden Hall near Halifax in the said county of York Esquire (hereinafter referred to as "the Vendor") of the third part ARTHUR SELBY MCCREA of Warley House Halifax aforesaid Esquire (hereinafter referred to as "the Purchaser") of the fourth part and THE MAYOR ALDERMEN and BURGESSES OF THE COUNTY BOROUGH OF HALIFAX in the said county of York (hereinafter referred to as "the Corporation") of the fifth part.

WHEREAS by an indenture dated the ninth day of November one thousand nine hundred and twenty and made between the Owner of the first part one Henry Fenton (therein referred to as the surety) of the second part and the Bank of the third part the Owner being then seised in unincumbered fee simple in possession conveyed the hereditaments hereinafter described with other hereditaments unto and to the use of the Bank in fee simple by way of mortgage for securing the payment to the Bank of all such sums as then were or from time to time thereafter should become owing from the Owner on the balance of his current account or any other account with the Bank with interest thereon as therein mentioned:

And whereas by an indenture dated the tenth day of November one thousand nine hundred and twenty and made between the Owner of the one part and the Vendor of the other part the Owner demised the said hereditaments hereinafter described unto the Vendor from the ninth day of November one thousand nine hundred and twenty for the term of one year and thereafter from year to year until the tenancy should be determined as thereafter mentioned at the yearly rent of one peppercorn and the indenture now in recital contained a proviso that if the Vendor should be desirous of purchasing the

A.D. 1924. — said hereditaments hereinafter described and should at any time before the ninth day of November one thousand nine hundred and twenty-three give to the Owner a notice in writing to that effect then and in such case the Vendor should be the purchaser of the said hereditaments hereinafter described (excepting and reserving as hereinafter mentioned) at the price of £7,500 as from the date of such notice :

And whereas the Vendor having duly given such notice the Owner and the Bank have agreed to convey the said hereditaments hereinafter described (excepting and reserving as hereinafter mentioned) to the Vendor or to such person or corporation as he shall direct on the terms that the whole of the said sum of £7,500 shall be paid to the Bank in part discharge of the said mortgage debt which at the present time exceeds the sum of £7,500 :

And whereas the Purchaser being desirous that the said hereditaments hereinafter described shall be vested in the Corporation to the intent that the same may be used as public pleasure grounds upon the terms and subject as hereinafter mentioned has agreed with the Vendor to purchase the said hereditaments from him upon the terms and subject as hereinafter mentioned at the price of £7,500 to be paid to the Bank as hereinbefore mentioned :

And whereas the Corporation have agreed to hold the said hereditaments hereinafter described upon the terms and conditions hereinafter mentioned :

Now this indenture witnesseth as follows :—

1. In consideration of the sum of £7,500 paid by the Purchaser to the Bank by the direction of the Vendor and at the request of the Owner (the receipt whereof the Bank hereby acknowledges and the payment in manner aforesaid the Vendor and the Owner hereby respectively acknowledge) the Bank as mortgagee at the request of the Owner and by the direction of the Vendor and of the Purchaser hereby conveys the Owner as beneficial owner by the direction of the Vendor and of the Purchaser hereby conveys and confirms the Vendor as trustee by the direction of the Purchaser hereby conveys and confirms and the Purchaser in consideration of the undertaking by the Corporation to support maintain and improve the said hereditaments hereinafter described as a public pleasure ground public park or recreation ground as beneficial owner hereby conveys and confirms unto the Corporation all and singular the mansion-house known as Shibden Hall with the outbuildings gardens woodlands pleasure grounds and lake thereto adjoining and belonging with the lands lodge and gardener's cottage all which said hereditaments are situate partly in the said county borough of Halifax and partly in the urban district of Southowram contain an area of 52 acres and 30 perches or thereabouts are now in the occupation of the

Vendor or his sub-tenants and are delineated in the plan hereunto annexed and therein surrounded by a red verge line. A.D. 1924.

Together with full right and liberty for the Corporation their successors and assigns owners for the time being of the hereditaments hereinbefore described and all other authorised persons from time to time and at all times hereafter and for all purposes to pass and repass with or without horses cattle carts carriages motor cars and other vehicles to and from the said hereditaments from and to Old Godley Lane along over and upon the road or way shown on the said plan by the dotted lines between the points thereon marked A and B in common with all other persons now or hereafter entitled thereto subject to the liability of the Corporation and the persons deriving title under them to keep the said road or way in good repair and condition and fenced off from the adjoining land of the Owner.

Except and reserving unto the Owner his heirs and assigns and the Bank its successors and assigns all mines and minerals under the surface of the said hereditaments hereby conveyed with full rights in winning working getting and carrying away of the same or any adjoining or neighbouring mines or minerals but by underground workings only and without erecting or setting up any brickworks or other buildings for manufacturing purposes and subject to the Owner his heirs and assigns paying to the Corporation adequate compensation for all damage or injury sustained by them to the surface of the said hereditaments hereby conveyed or any buildings erected thereon by reason of the winning working getting and carrying away of the said mines and minerals.

And subject also to all such rights of road and entry (if any) upon the surface of the said hereditaments hereby conveyed to which the same may be subject by virtue of any now subsisting demises of the said mines and minerals.

To hold the said hereditaments hereby conveyed (except and reserving and subject as aforesaid) unto and to the use of the Corporation their successors and assigns for ever for the purpose of a public pleasure ground public park or recreation ground freed and discharged from all principal money and interest secured by and from all claims and demands under the hereinbefore recited indenture of the ninth day of November one thousand nine hundred and twenty and also freed and discharged from the hereinbefore recited indenture of lease of the tenth day of November one thousand nine hundred and twenty and the term thereby created but upon the terms and conditions set out in the First Schedule hereto.

2. The Corporation for themselves and their successors hereby covenant with the Purchaser his heirs and assigns that the

A.D. 1924. Corporation their successors or assigns will fence off where necessary and subject as hereinafter mentioned for ever hereafter support maintain and improve the said hereditaments hereby conveyed as and for the purpose of a public pleasure ground public park or recreation ground.

3. The Bank hereby acknowledges the right of the Corporation to production of the documents mentioned in the Second Schedule hereto possession of which is retained by the Bank and to delivery of copies thereof.

In witness whereof the Corporation and the Bank have caused the respective common seals to be hereunto affixed and the said other parties hereto have hereunto set their respective hands and seals the day and year first above written.

THE FIRST SCHEDULE ABOVE REFERRED TO.

1. The Corporation shall from the date of these presents grant to the Vendor a lease for the term of 30 years to determine on the death of the Vendor or within twelve months thereafter at a peppercorn rent of the said mansion-house (furnished with such furniture as the Corporation has acquired) with the lodge gardener's cottage and stable and such part of the outhouses and private grounds as are now in his occupation and are delineated upon the said plan hereunto annexed and therein coloured green on the terms that the Vendor is to be liable for the inside repairs only of the portion in his actual personal occupation (fair wear and tear and damage by fire storm and tempest excepted) and that the Corporation will fence off the same where required and the Corporation is to be liable for all such other repairs as may be necessary from time to time to uphold and keep the fabric of the said mansion-house and appurtenances in a good state of preservation. The said lease shall contain covenants by the Vendor to pay all rates and taxes of the premises in his actual personal occupation (except landlord's property tax) during the said term and not to assign or sublet the whole or any part of the demised premises to any person except Anne Lister.

2. The Corporation shall preserve the said mansion-house as a building of historic interest to the public.

3. No public celebrations festivals galas or fairs shall be held or celebrated on any part of the said hereditaments hereby conveyed during the life of the Vendor unless his previous consent be had and obtained.

4. No buildings shall be erected upon any part of the said hereditaments hereby conveyed except such as the Corporation may consider necessary or desirable in connection with the use of

the said hereditaments for the purpose of a public pleasure ground
public park or recreation ground. A.D. 1924.

5. No buildings shall be erected upon any part of the said hereditaments hereby conveyed and no structural alterations shall be made to any existing buildings nor shall any existing buildings be pulled down except with the approval of the Purchaser during his life and after the death of the Purchaser with the approval of the President for the time being of the Yorkshire Archaeological Society.

6. The planning and laying out of the park and other lands for the purposes aforesaid shall be subject to the approval mentioned in clause 5 hereof provided that the approval referred to in this clause shall not unreasonably be withheld and the President for the time being of the Halifax Architects Association shall be the sole arbiter as to whether the withholding of the approval be reasonable or not.

THE SECOND SCHEDULE ABOVE REFERRED TO.

27th September 1886—Indenture of counterpart lease made between the Vendor of the one part and Richard Oates of the other part.

20th December 1916—Indenture of counterpart lease (supplemental to the last-mentioned indenture) made between the Vendor of the first part the Yorkshire Penny Bank (in voluntary liquidation) of the second part James Wm. Close and John Carnes of the third part the Bank of the fourth part James Wm. Aked of the fifth part and Oates and Green Ltd. of the sixth part.

1st December 1888—Indenture of counterpart lease made between the Vendor of the one part and Newton Brooke of the other part.

29th June 1912—Indenture of counterpart lease (supplemental to the last-mentioned indenture) made between the Vendor of the first part the Yorkshire Penny Bank (in voluntary liquidation) of the second part Henry Barber Sellers and James Wm. Close of the third part and the Leeds Fireclay Co. Ltd. of the fourth part.

31st October 1905—Indenture of counterpart lease made between the Vendor of the one part and the Leeds Fireclay Co. Ltd. of the other part.

8th November 1920—Indenture of conveyance made between the Vendor of the first part the Yorkshire Penny Bank (in voluntary liquidation) of the second part John Carnes and

A.D. 1924.

George Edwin Thackeray of the third part and the Bank of the fourth part James Wm. Aked of the fifth part and the Owner of the sixth part.

9th November 1920—The above-recited indenture of mortgage.

Signed sealed and delivered by
the above-named Cecil Cooper
Milligan in the presence of

CECIL C.
MILLIGAN.

L.S.

W. F. WILSON

P. WATERHOUSE

Clerks to Messrs. Schöle-
field Taylor and
Maggs

Solicitors Batley.

Signed sealed and delivered by
the above-named John Lister
in the presence of

JOHN LISTER.

L.S.

JAMES W. AKED

Solicitor Halifax.

E. W. NORRIS

Solicitor Halifax.

Signed sealed and delivered
by the above-named Arthur
Selby McCrea in the presence
of

A. S. McCREA.

L.S.

J. E. MANN

P. M. PATCHETT

Clerks with Hill and
Norris

Solicitors Halifax.

The common seal of the York-
shire Penny Bank Limited
was hereunto affixed in the
presence of

L.S.

R. E. BECKETT

Director.

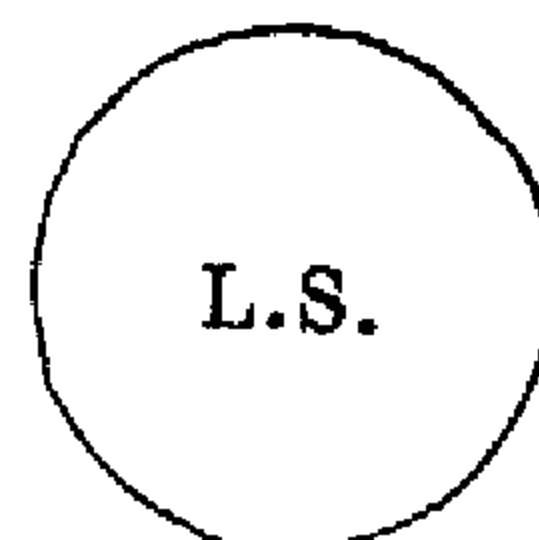
JOHN CARNES

Secretary.

[14 & 15 GEO. 5.] *Halifax Corporation*
Act, 1924.

[Ch. lxx.]

The corporate common seal of
the county borough of Halifax
was hereunto affixed in the
presence of



A.D. 1924.
—

ROBERT THOMAS

Mayor.

PERCY SAUNDERS

Town Clerk.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

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